

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 979

Introduced by Brandt, 32; DeKay, 40.

Read first time January 12, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Game and Parks Commission; to amend
2 sections 37-327.01, 37-406, 37-431, 37-484, and 37-1241.02, Reissue
3 Revised Statutes of Nebraska, sections 37-201, 37-247.01, 37-324,
4 37-415, 37-447, 37-449, 37-450, 37-456.01, and 37-4,111, Revised
5 Statutes Cumulative Supplement, 2024, and sections 37-327.04,
6 37-451, and 37-1214, Revised Statutes Supplement, 2025; to redefine
7 a term; to change provisions relating to funds, fees, permits, and
8 floatation devices; to provide for fees for educational programs; to
9 provide a penalty; to harmonize provisions; and to repeal the
10 original sections.
- 11 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 37-201, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 37-201 Sections 37-201 to 37-814 and 37-1501 to 37-1510 and sections
4 6 and 17 of this act and the State Park System Construction Alternatives
5 Act shall be known and may be cited as the Game Law.

6 **Sec. 2.** Section 37-247.01, Revised Statutes Cumulative Supplement,
7 2024, is amended to read:

8 37-247.01 Wildlife abatement means ~~the use of a trained raptor to~~
9 frighten, flush, haze, take, or kill certain wildlife to manage
10 depredation, damage, or other threats to human health and safety or
11 commerce caused by such wildlife.

12 **Sec. 3.** Section 37-324, Revised Statutes Cumulative Supplement,
13 2024, is amended to read:

14 37-324 (1) The funds derived from the sale of permits and
15 publications as provided in the Game Law, any unexpended balance now on
16 hand from the sale of hunting, fur-harvesting, and fishing permits, and
17 all money required by the Game Law to be paid into the State Game Fund
18 are hereby appropriated to the use of the commission (a) for the
19 propagation, importation, protection, preservation, and distribution of
20 game and fish and necessary equipment therefor and all things pertaining
21 thereto, (b) for the creation of cash funds under section 37-326, (c) for
22 the administration and enforcement of the State Boat Act, (d) for boating
23 safety educational programs, (e) for the construction and maintenance of
24 boating and docking facilities, navigation aids, and access to boating
25 areas and such other uses which will promote the safety and convenience
26 of the boating public in Nebraska, (f) for abatement ~~payment of claims by~~
27 ~~landowners in Nebraska for property~~ damage caused by deer, antelope, or
28 elk ~~, if such payment is in compliance with federal laws and regulations,~~
29 and (g) for publishing costs for publications relating to topics listed
30 in subdivisions (a) and (b) of this subsection and other topics of
31 general interest to the state as approved by the commission. An amount

1 equal to two dollars from each annual resident fishing permit and two
2 dollars from each combination hunting and fishing permit sold in this
3 state shall be used by the commission for the administration,
4 construction, operation, and maintenance of fish hatcheries and for the
5 distribution of fish.

6 (2) Expenditures for publications on topics of general interest to
7 the state shall not exceed the income derived from single-copy and
8 subscription sales of commission publications and advertising revenue
9 from such publications.

10 **Sec. 4.** Section 37-327.01, Reissue Revised Statutes of Nebraska, is
11 amended to read:

12 37-327.01 (1) The Game Law Investigation Cash Fund is created. The
13 commission shall use the fund for investigations to enforce the purpose
14 ~~of obtaining evidence for enforcement of~~ the Game Law. The fund shall be
15 funded through revenue collected under the Game Law and budgeted or
16 allocated to the fund by the commission, and through donations from
17 persons, wildlife groups, and other charitable sources. Any money in the
18 fund available for investment shall be invested by the state investment
19 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
20 State Funds Investment Act.

21 (2) For the purpose of establishing and maintaining legislative
22 oversight and accountability, the commission shall formulate record-
23 keeping procedures for all expenditures, disbursements, and transfers of
24 cash from the Game Law Investigation Cash Fund. Based on these record-
25 keeping procedures, the commission shall prepare and deliver
26 electronically to the Clerk of the Legislature by September 15 of each
27 year a detailed report of the previous fiscal year which includes, but is
28 not limited to:

29 (a) The June 30 balance in the Game Law Investigation Cash Fund and
30 the amounts delivered to the commission for distribution to agents and
31 informants;

1 (b) ~~The the~~ total amount of expenditures;

2 (c) ~~The the~~ purpose of the expenditures including: (i) Salaries and
3 any expenses of all agents and informants; (ii) front money for wildlife
4 purchases; (iii) type of wildlife and amount purchased; ~~and~~ (iv) amount
5 of front money recovered; (v) investigative vehicles and specialized
6 investigatory equipment; (vi) digital investigative services; and (vii)
7 specialized investigative training;

8 (d) ~~The the~~ total number of informants on payroll; and

9 (e) ~~The the~~ results procured through such transactions. Each member
10 of the Legislature shall receive an electronic copy of such report by
11 making a request for it to the secretary of the commission.

12 (3) The commission shall adopt and promulgate rules and regulations
13 to carry out this section.

14 **Sec. 5.** Section 37-327.04, Revised Statutes Supplement, 2025, is
15 amended to read:

16 37-327.04 The Game and Parks Commission Educational Fund is created.
17 The fund shall consist of money credited pursuant to section 60-3,163.02
18 and section 6 of this act, any gifts, grants, bequests, or other
19 contributions to such fund, and any other money as determined by the
20 Legislature. The commission shall use the fund to provide youth education
21 programs relating to wildlife conservation practices. Any money in the
22 fund available for investment shall be invested by the state investment
23 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
24 State Funds Investment Act.

25 **Sec. 6.** The commission may establish and collect reasonable fees
26 for providing programs relating to fish and wildlife education. Fees for
27 providing such programs shall not exceed the costs of staffing and
28 materials for such programs. The proceeds of all such fees shall be
29 remitted to the State Treasurer for credit to the Game and Parks
30 Commission Educational Fund.

31 **Sec. 7.** Section 37-406, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 37-406 (1) Licenses, permits, and stamps required under the Game Law
3 shall be issued by the commission and may be procured from the secretary
4 of the commission. The commission may provide for the electronic issuance
5 of any license, permit, or stamp required under the Game Law and may
6 enter into contracts to procure necessary services and supplies for the
7 electronic issuance of licenses, permits, and stamps. Except for permits
8 issued under sections 37-462 and 37-463, the commission may provide for
9 the issuance of any license, permit, or stamp required under the Game Law
10 in the form of a number which identifies the holder in the records of the
11 commission. The commission may designate itself and other persons, firms,
12 and corporations as agents to issue licenses, permits, and stamps and
13 collect the prescribed fees. The commission and any person, firm, or
14 corporation authorized by the commission to issue licenses, permits, and
15 stamps shall be entitled to collect and retain an additional fee of not
16 more than four ~~three~~ dollars, for each license, permit, or stamp issued
17 as reimbursement for the clerical work of issuing the license, permit, or
18 stamp and collecting and remitting the fees.

19 (2) The commission shall adopt and promulgate rules and regulations
20 regarding electronic issuance of licenses, permits, and stamps, including
21 electronic issuance devices, deposits by agents, and remittance of fees.
22 The commission may provide for the electronic issuance of a license,
23 permit, or stamp by acknowledging the purchase of such license, permit,
24 or stamp without requiring a physical license, permit, or stamp or
25 facsimile of such.

26 (3) It shall be unlawful for any person to duplicate any
27 electronically issued license, permit, or stamp. Any person violating
28 this subsection shall be guilty of a Class III misdemeanor and shall be
29 fined at least seventy-five dollars, and any license, permit, or stamp
30 involved in such violation shall be confiscated by the court.

31 **Sec. 8.** Section 37-415, Revised Statutes Cumulative Supplement,

1 2024, is amended to read:

2 37-415 (1) The commission may issue to any Nebraska resident a
3 lifetime fur-harvesting, fishing, hunting, or combination hunting and
4 fishing permit upon application and payment of the appropriate fee. The
5 fee for a resident lifetime fur-harvesting or hunting permit shall not
6 exceed twenty times the annual fee for such permit, as such fees are
7 established by the commission pursuant to section 37-327. The fee for a
8 resident lifetime fishing or combination hunting and fishing permit shall
9 not exceed twenty times the annual fee for such permit ~~permit shall be~~
10 ~~not more than two hundred ninety-nine dollars, the fee for a resident~~
11 ~~lifetime hunting permit shall be not more than three hundred ninety-six~~
12 ~~dollars, the fee for a resident lifetime fishing permit shall be not more~~
13 ~~than four hundred fifty-seven dollars plus the cost of a lifetime aquatic~~
14 ~~habitat stamp, and the fee for a resident lifetime combination hunting~~
15 ~~and fishing permit shall be not more than seven hundred ninety-two~~
16 ~~dollars plus the cost of a lifetime aquatic habitat stamp, as such fees~~
17 ~~are established by the commission pursuant to section 37-327. Payment of~~
18 ~~the fee shall be made in a lump sum at the time of application.~~

19 (2) A resident lifetime permit shall not be made invalid by reason
20 of the holder subsequently residing outside the state.

21 (3) The commission may issue to any nonresident a lifetime fishing,
22 hunting, or combination hunting and fishing permit upon application and
23 payment of the appropriate fee. The fee for a nonresident lifetime
24 hunting permit shall not exceed twenty times the annual fee for such
25 permit, as such fees are established by the commission pursuant to
26 section 37-327. The fee for a nonresident lifetime fishing or combination
27 hunting and fishing permit shall not exceed twenty times the annual fee
28 for such permit ~~be not more than one thousand five hundred sixty-two~~
29 ~~dollars, the fee for a nonresident lifetime fishing permit shall be not~~
30 ~~more than one thousand one hundred twenty-five dollars plus the cost of a~~
31 ~~lifetime aquatic habitat stamp, and the fee for a nonresident lifetime~~

1 ~~combination hunting and fishing permit shall be not more than two~~
2 ~~thousand three hundred forty-two dollars~~ plus the cost of a lifetime
3 aquatic habitat stamp, as such fees are established by the commission
4 pursuant to section 37-327. Payment of the fee shall be made in a lump
5 sum at the time of application.

6 (4) A replacement resident or nonresident lifetime permit may be
7 issued if the original has been lost or destroyed for no additional fee.
8 This subsection applies only to a paper permit and not a commemorative
9 brass plate permit.

10 (5) The commission may adopt and promulgate rules and regulations to
11 carry out this section and sections 37-416 and 37-417. Such rules and
12 regulations may include, but need not be limited to, establishing fees
13 which vary based on the age of the applicant.

14 **Sec. 9.** Section 37-431, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 37-431 (1)(a) The Nebraska Habitat Fund is created. The commission
17 shall remit fees received for annual and multiple-year habitat stamps and
18 annual and multiple-year Nebraska migratory waterfowl stamps to the State
19 Treasurer for credit to the Nebraska Habitat Fund. Any money in the fund
20 available for investment shall be invested by the state investment
21 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
22 State Funds Investment Act. Fees received and income from such
23 investments may be expended by the commission pursuant to section 37-432.
24 ~~Up to twenty-five percent of the annual receipts of the fund may be spent~~
25 ~~by the commission to provide access to private wildlife lands and habitat~~
26 ~~areas, and the remainder of the fund shall not be spent until the~~
27 ~~commission has presented a habitat plan to the Committee on~~
28 ~~Appropriations of the Legislature for its approval.~~

29 (b) Fees received for lifetime habitat stamps and lifetime Nebraska
30 migratory waterfowl stamps under the Game Law shall be credited to the
31 Nebraska Habitat Fund. Twenty-five percent of the fees for such stamps

1 shall not be expended but may be invested by the state investment officer
2 pursuant to the Nebraska Capital Expansion Act and the Nebraska State
3 Funds Investment Act. Income from such investments may be expended by the
4 commission pursuant to section 37-432.

5 (2)(a) The Nebraska Aquatic Habitat Fund is created. The commission
6 shall remit fees received for annual and multiple-year aquatic habitat
7 stamps and one dollar of the one-day fishing permit fee as provided in
8 section 37-426 to the State Treasurer for credit to the Nebraska Aquatic
9 Habitat Fund. Any money in the fund available for investment shall be
10 invested by the state investment officer pursuant to the Nebraska Capital
11 Expansion Act and the Nebraska State Funds Investment Act. Fees received
12 and income from such investments may be expended by the commission
13 pursuant to section 37-432. ~~Up to thirty percent of the annual receipts~~
14 ~~of the fund may be spent by the commission to provide public waters~~
15 ~~angler access enhancements and to provide funding for the administration~~
16 ~~of programs related to aquatic habitat and public waters angler access~~
17 ~~enhancements, and the remainder of the fund shall not be spent until the~~
18 ~~commission has presented a habitat plan to the Committee on~~
19 ~~Appropriations and the Committee on Natural Resources of the Legislature~~
20 ~~for their approval.~~

21 (b) Fees received for lifetime aquatic habitat stamps shall be
22 credited to the Nebraska Aquatic Habitat Fund. Twenty-five percent of the
23 fees for such stamps ~~and~~ shall not be expended but may be invested by the
24 state investment officer pursuant to the Nebraska Capital Expansion Act
25 and the Nebraska State Funds Investment Act. Income from such investments
26 may be expended by the commission pursuant to section 37-432.

27 (3) The secretary of the commission and any county clerk or public
28 official designated to sell habitat stamps, aquatic habitat stamps, or
29 Nebraska migratory waterfowl stamps shall be liable upon their official
30 bonds or equivalent commercial insurance policy for failure to remit the
31 money from the sale of the stamps, as required by sections 37-426 to

1 37-433, coming into their hands. Any agent who receives stamp fees and
2 who fails to remit the fees to the commission within a reasonable time
3 after demand by the commission shall be liable to the commission in
4 damages for double the amount of the funds wrongfully withheld. Any agent
5 who purposefully fails to remit such fees with the intention of
6 converting them is guilty of theft. The penalty for such violation shall
7 be determined by the amount converted as specified in section 28-518.

8 **Sec. 10.** Section 37-447, Revised Statutes Cumulative Supplement,
9 2024, is amended to read:

10 37-447 (1) The commission may issue permits for the hunting of deer
11 and adopt and promulgate rules and regulations and pass commission orders
12 pursuant to section 37-314 to prescribe limitations for the hunting,
13 transportation, and possession of deer. The commission may offer permits
14 or combinations of permits at temporarily reduced rates for specific
15 events or during specified timeframes. The commission may specify by rule
16 and regulation the information to be required on applications for such
17 permits. Rules and regulations for the hunting, transportation, and
18 possession of deer may include, but not be limited to, rules and
19 regulations as to the type, caliber, and other specifications of firearms
20 and ammunition used and specifications for bows and arrows used. Such
21 rules and regulations may further specify and limit the method of hunting
22 deer and may provide for dividing the state into management units or
23 areas, and the commission may enact different deer hunting regulations
24 for the different management units pertaining to sex, species, and age of
25 the deer hunted.

26 (2) The number of such permits may be limited as provided by the
27 rules and regulations of the commission, and except as provided in
28 section 37-454, the permits shall be allocated in an impartial manner.
29 Whenever the commission deems it advisable to limit the number of permits
30 issued for any or all management units, the commission shall, by rules
31 and regulations, determine eligibility to obtain such permits. In

1 establishing eligibility, the commission may give preference to persons
2 who did not receive a permit or a specified type of permit during the
3 previous year or years.

4 (3) Such permits may be issued to allow deer hunting in the Nebraska
5 National Forest and other game reserves and such other areas as the
6 commission may designate whenever the commission deems that permitting
7 such hunting will not be detrimental to the proper preservation of
8 wildlife in Nebraska in such forest, reserves, or areas.

9 (4)(a) The commission may, pursuant to section 37-327, establish and
10 charge a nonrefundable application fee of not more than nine ~~seven~~
11 dollars for deer permits in those management units awarded on the basis
12 of a random drawing. The commission shall, pursuant to section 37-327,
13 establish and charge a fee of not more than fifty ~~thirty-nine~~ dollars for
14 residents and not more than four hundred eighty ~~three hundred sixty-nine~~
15 dollars for nonresidents for each permit issued under this section except
16 as otherwise provided in subdivision (b) of this subsection and
17 subsection (6) of this section. The commission may, pursuant to section
18 37-327, establish and charge a fee of not more than twenty-four dollars
19 for residents and not more than seventy-two dollars for nonresidents for
20 the issuance of a preference point, in addition to any application fee.
21 The commission shall adopt and promulgate rules and regulations for
22 issuing a preference point , ~~in lieu of entering the draw for a deer~~
23 ~~permit during the application period for the random drawing.~~

24 (b) The fee for a statewide buck-only permit limited to white-tailed
25 deer shall be no more than two and one-half times the amount of a regular
26 deer permit. The fee for a statewide buck-only deer permit that allows
27 harvest of mule deer shall be no more than five times the amount of a
28 regular deer permit.

29 (5)(a) The commission may issue nonresident permits after preference
30 has been given for the issuance of resident permits as provided in rules
31 and regulations adopted and promulgated by the commission.

1 (b) In management units specified by the commission, the commission
2 may issue nonresident permits after resident preference has been provided
3 by allocating at least eighty-five percent of the available permits to
4 residents. The commission may require a predetermined application period
5 for permit applications in specified management units. Such permits shall
6 be issued after a reasonable period for making application, as
7 established by the commission, has expired. When more valid applications
8 are received for a designated management unit than there are permits
9 available, such permits shall be allocated on the basis of a random
10 drawing. All valid applications received during the predetermined
11 application period shall be considered equally in any such random drawing
12 without regard to time of receipt of such applications by the commission.

13 (6) The commission shall, pursuant to section 37-327, establish and
14 charge a fee of not more than twenty-five dollars for residents and not
15 more than forty-five dollars for nonresidents for a youth deer permit.

16 (7) Any person violating the rules and regulations adopted and
17 promulgated or commission orders passed pursuant to this section shall be
18 guilty of a Class II misdemeanor and shall be fined at least one hundred
19 dollars upon conviction.

20 **Sec. 11.** Section 37-449, Revised Statutes Cumulative Supplement,
21 2024, is amended to read:

22 37-449 (1) The commission may issue permits for hunting antelope and
23 may adopt and promulgate separate and, when necessary, different rules
24 and regulations therefor within the limitations prescribed in sections
25 37-447 and 37-452 for hunting deer. The commission may offer permits or
26 combinations of permits at reduced rates for specific events or during
27 specified timeframes.

28 (2) The commission may, pursuant to section 37-327, establish and
29 charge a nonrefundable application fee of not more than nine seven
30 dollars for antelope permits in those management units awarded on the
31 basis of a random drawing. The commission shall, pursuant to section

1 37-327, establish and charge a fee of not more than fifty thirty-nine
2 dollars for residents and not less than three hundred sixty-nine dollars
3 and not more than four hundred eighty ~~not more than two hundred fifty-~~
4 ~~seven~~ dollars for nonresidents for each permit issued under this section
5 except as provided in subsection (4) of this section. The commission may,
6 pursuant to section 37-327, establish and charge a fee of not more than
7 twenty-four dollars for residents and not more than seventy-two dollars
8 for nonresidents for the issuance of a preference point, in addition to
9 any application fee. The commission shall adopt and promulgate rules and
10 regulations for issuing a preference point , ~~in lieu of entering the draw~~
11 ~~for an antelope permit during the application period for the random~~
12 ~~drawing.~~

13 (3) The provisions for the distribution of deer permits and the
14 authority of the commission to determine eligibility of applicants for
15 permits as described in sections 37-447 and 37-452 shall also apply to
16 the distribution of antelope permits.

17 (4) The commission shall, pursuant to section 37-327, establish and
18 charge a fee of not more than twenty-five dollars for residents and not
19 more than forty-five dollars for nonresidents for a youth antelope
20 permit.

21 (5) Any person violating the rules and regulations adopted and
22 promulgated pursuant to this section shall be guilty of a Class II
23 misdemeanor and shall be fined at least one hundred dollars upon
24 conviction.

25 **Sec. 12.** Section 37-450, Revised Statutes Cumulative Supplement,
26 2024, is amended to read:

27 37-450 (1) The commission may issue permits for hunting elk and may
28 adopt and promulgate separate and, when necessary, different rules and
29 regulations therefor within the limitations prescribed in sections 37-447
30 and 37-452 for hunting deer.

31 (2) The commission shall, pursuant to section 37-327, establish and

1 charge (a) a nonrefundable application fee of not more than twelve
2 dollars for a resident elk permit and not to exceed three times such
3 amount for a nonresident elk permit and (b) a fee of not more than one
4 hundred ninety-eight dollars for each resident elk permit issued and
5 three times such amount for each nonresident elk permit issued. The
6 commission may, pursuant to section 37-327, establish and charge a fee of
7 not more than twenty-four dollars for residents and not more than
8 seventy-two dollars for nonresidents for the issuance of a preference
9 point or a bonus point, in addition to any application fee. The
10 commission shall adopt and promulgate rules and regulations for issuing a
11 preference point or bonus point , ~~in lieu of entering the draw for an elk~~
12 ~~permit during the application period for the random drawing.~~

13 (3) An applicant shall not be issued a resident elk permit that
14 allows the harvest of an antlered elk more than once every five years. A
15 person may only harvest one antlered elk in his or her lifetime except
16 when harvesting an antlered elk with a limited permit to hunt elk
17 pursuant to subdivision (1)(b) of section 37-455 or an auction or lottery
18 permit pursuant to section 37-455.01.

19 (4) The provisions for the distribution of deer permits and the
20 authority of the commission to determine eligibility of applicants for
21 permits as described in sections 37-447 and 37-452 shall also apply to
22 the distribution of elk permits.

23 (5) Any person violating the rules and regulations adopted and
24 promulgated pursuant to this section shall be guilty of a Class III
25 misdemeanor and shall be fined at least two hundred dollars upon
26 conviction.

27 **Sec. 13.** Section 37-451, Revised Statutes Supplement, 2025, is
28 amended to read:

29 37-451 (1) The commission may issue permits for hunting mountain
30 sheep and may adopt and promulgate separate and, when necessary,
31 different rules and regulations therefor within the limitations

1 prescribed in subsection (1) of section 37-447 and section 37-452 for
2 hunting deer. Such rules and regulations shall include provisions
3 allowing persons who find dead mountain sheep, or any part of a mountain
4 sheep, to turn over to the commission such mountain sheep or part of a
5 mountain sheep. The commission may dispose of such mountain sheep or part
6 of a mountain sheep as it deems reasonable and prudent. Except as
7 otherwise provided in this section, the permits shall be issued to
8 residents of Nebraska.

9 (2) The commission shall, pursuant to section 37-327, establish and
10 charge a nonrefundable application fee of not more than forty-four
11 ~~thirty-four~~ dollars for permits issued only to residents. Any number of
12 resident-only permits, as authorized by the commission, shall be awarded
13 by random drawing to eligible applicants. No permit fee shall be charged
14 in addition to the nonrefundable application fee.

15 (3) No more than two additional permits may be authorized and issued
16 pursuant to an auction open to residents and nonresidents. The number of
17 such permits shall not exceed the number of those awarded pursuant to
18 subsection (2) of this section. The auction shall be conducted according
19 to rules and regulations prescribed by the commission. Any money derived
20 from the sale of permits by auction shall be used only for perpetuation
21 and management of mountain sheep, elk, and deer.

22 (4) If the commission determines to limit the number of permits
23 issued for any or all management units, the commission shall by rule and
24 regulation determine eligibility requirements for the permits.

25 (5) A person may obtain only one mountain sheep permit in his or her
26 lifetime, except that an auction permit issued in accordance with
27 subsection (3) of this section to harvest a mountain sheep shall not
28 count against such total.

29 (6) Any person violating the rules and regulations adopted and
30 promulgated pursuant to this section shall be guilty of a Class III
31 misdemeanor and shall be fined at least five hundred dollars upon

1 conviction.

2 **Sec. 14.** Section 37-456.01, Revised Statutes Cumulative Supplement,
3 2024, is amended to read:

4 37-456.01 (1) The commission may issue one free-earned landowner elk
5 permit for the taking of either sex of elk to any person owning or
6 leasing at least eighty acres of farm or ranch land used for agricultural
7 purposes, or to any member of the immediate family of such person as
8 defined in subdivision (2)(a) of section 37-455, when the qualifying
9 number of antlerless elk have been harvested on such land by hunters with
10 a permit issued under section 37-448 or 37-450. Such permit shall be
11 limited to hunting on the lands owned or leased by the qualifying
12 landowner. Receipt of a free-earned landowner elk permit shall not in any
13 way affect a person's eligibility for a permit issued under section
14 37-450 or 37-455.

15 (2) The commission ~~may shall~~ adopt and promulgate rules and
16 regulations prescribing issuance of free-earned landowner elk permits,
17 accumulation of antlerless elk harvests, procedures, forms, and
18 requirements for documentation by landowners or lessees as described in
19 subsection (1) of this section to annually report antlerless elk
20 harvested on their property for eligibility, and the number of antlerless
21 elk required to be harvested on such property to qualify for a free-
22 earned landowner elk permit. ~~The number of antlerless elk harvested to~~
23 ~~qualify shall accumulate each year until such time as a free earned~~
24 ~~landowner elk permit is awarded.~~

25 **Sec. 15.** Section 37-484, Reissue Revised Statutes of Nebraska, is
26 amended to read:

27 37-484 Any person or persons owning, holding, or controlling by
28 lease or otherwise, which possession must be for a term of five or more
29 years, any tract or tracts of land having an area of not less than eighty
30 acres and not more than two thousand five hundred sixty acres who desires
31 to establish a game breeding and controlled shooting area to propagate,

1 preserve, and shoot game birds under the regulations as provided in
2 sections 37-484 to 37-496 shall make application to the commission for a
3 license as provided by such sections. Such application shall be made
4 under oath of the applicant or one of its principal officers if the
5 applicant is an association, club, or corporation and shall be
6 accompanied by a license fee of not more than two hundred fifty-eight ~~one~~
7 ~~hundred ninety-eight~~ dollars, as established by the commission pursuant
8 to section 37-327. Any controlled shooting area existing on February 18,
9 1987, shall continue in operation on the existing acreage until such
10 controlled shooting area license is not renewed or canceled. If the
11 applicant is an individual, the application shall include the applicant's
12 social security number.

13 **Sec. 16.** Section 37-4,111, Revised Statutes Cumulative Supplement,
14 2024, is amended to read:

15 37-4,111 The commission may adopt and promulgate rules and
16 regulations to provide for the issuance of permits for the taking of
17 paddlefish. The commission may, pursuant to section 37-327, establish and
18 charge a fee of not more than thirty-five dollars for residents. The fee
19 for a nonresident permit to take paddlefish shall be two times the
20 resident permit fee. In addition, the commission may, pursuant to section
21 37-327, establish and charge a nonrefundable application fee of not more
22 than nine ~~seven~~ dollars. The commission may, pursuant to section 37-327,
23 establish and charge a fee of not more than twenty-four dollars for
24 residents and not more than seventy-two dollars for nonresidents for the
25 issuance of a preference point, in addition to any application fee. The
26 commission shall adopt and promulgate rules and regulations for issuing a
27 preference point ~~, in lieu of applying for a paddlefish permit during the~~
28 ~~application period.~~ All fees collected under this section shall be
29 remitted to the State Treasurer for credit to the State Game Fund.

30 **Sec. 17.** (1) It shall be unlawful for any person to possess,
31 transport, sell, purchase, barter, trade, import, export, or conspire to

1 possess, transport, sell, purchase, barter, trade, import, or export any
2 wildlife taken, possessed, transported, or exported in violation of the
3 Game Law.

4 (2)(a) Except as provided in subdivision (b) of this subsection, any
5 person violating this section shall be guilty of a Class I misdemeanor.

6 (b) If the aggregate value of the wildlife possessed, transported,
7 sold, purchased, bartered, traded, imported, or exported, based on the
8 amount of damages prescribed under section 37-613 and the consideration
9 given for such transportation, importation, or exportation exceeds ten
10 thousand dollars within a period of three consecutive years, such person
11 shall be guilty of a Class III felony.

12 **Sec. 18.** Section 37-1214, Revised Statutes Supplement, 2025, is
13 amended to read:

14 37-1214 (1) Except as otherwise provided in section 37-1211, the
15 owner of each motorboat shall register such vessel or renew the
16 registration every three years as provided in section 37-1226. The owner
17 of such vessel shall file an initial application for a certificate of
18 number pursuant to section 37-1216 with a county treasurer on forms
19 approved and provided by the commission. The application shall be signed
20 by the owner of the vessel, shall contain the year manufactured, and
21 shall be accompanied by a registration fee for the three-year period of
22 forty twenty-eight dollars for Class 1 boats, sixty fifty-one dollars for
23 Class 2 boats, eighty seventy-two dollars and fifty cents for Class 3
24 boats, and one hundred thirty twenty dollars for Class 4 boats. Of each
25 motorboat registration fee, not more than ten dollars may be used for the
26 Aquatic Invasive Species Program.

27 (2) The owner of a motorboat not registered in Nebraska shall
28 purchase an aquatic invasive species stamp for the Aquatic Invasive
29 Species Program valid for one calendar year prior to launching into any
30 waters of the state. The cost of such one-year stamp shall be established
31 pursuant to section 37-327 and be not more than thirty dollars plus an

1 issuance fee pursuant to section 37-406. Such one-year stamp may be
2 purchased electronically or through any vendor authorized by the
3 commission to sell other permits and stamps issued under the Game Law
4 pursuant to section 37-406. The aquatic invasive species stamp shall be
5 permanently affixed on the starboard and rearward side of the vessel. The
6 proceeds from the sale of stamps shall be remitted to the State Game
7 Fund.

8 (3) This subsection applies beginning on an implementation date
9 designated by the Director of Motor Vehicles in cooperation with the
10 commission. The director shall designate an implementation date on or
11 before January 1, 2021, for motorboat registration. In addition to the
12 information required under subsection (1) of this section, the
13 application for registration shall contain (a)(i) the full legal name as
14 defined in section 60-468.01 of each owner or (ii) the name of each owner
15 as such name appears on the owner's motor vehicle operator's license or
16 state identification card and (b)(i) the motor vehicle operator's license
17 number or state identification card number of each owner, if applicable,
18 and one or more of the identification elements as listed in section
19 60-484 of each owner, if applicable, and (ii) if any owner is a business
20 entity, a nonprofit organization, an estate, a trust, or a church-
21 controlled organization, its tax identification number.

22 **Sec. 19.** Section 37-1241.02, Reissue Revised Statutes of Nebraska,
23 is amended to read:

24 37-1241.02 (1) A personal watercraft may not be operated on the
25 waters of this state unless each person aboard the personal watercraft is
26 wearing a ~~Type I, Type II, Type III, or Type V~~ United States Coast Guard-
27 approved floatation device approved for use on personal watercraft.

28 (2) Each person operating a personal watercraft on the waters of
29 this state which is equipped by the manufacturer with a lanyard-type
30 engine cutoff switch shall attach the lanyard to the operator's person,
31 clothing, or floatation device as appropriate.

1 **Sec. 20.** Original sections 37-327.01, 37-406, 37-431, 37-484, and
2 37-1241.02, Reissue Revised Statutes of Nebraska, sections 37-201,
3 37-247.01, 37-324, 37-415, 37-447, 37-449, 37-450, 37-456.01, and
4 37-4,111, Revised Statutes Cumulative Supplement, 2024, and sections
5 37-327.04, 37-451, and 37-1214, Revised Statutes Supplement, 2025, are
6 repealed.